

this (c). However, Lord Thurlow himself seems to have entertained that opinion, for in the same case of *Pickering v. Vowles*, where the property was articulated to be settled, but there was no direction for renewals, his Lordship said, "It was *intended* the lease should be fully estated, and that the husband and wife should have life estates, and that so fully estated it should go to the children."

5. **Of discretionary renewals.** — A direction for renewals where successive estates are limited is sometimes in the form of a *discretionary* power. The instrument *may*, indeed, be so specially worded, that the power should be perfectly arbitrary; but if the proviso be simply that "it shall be lawful for the trustees to renew, from time to time, as occasion may require, and as they may think proper," the clause will be construed, not as conferring an option upon the trustees of renewing or not, but as a safeguard against any unreasonable demands on the part of the lessor (d).

6. **23 & 24 Vict. c. 145.** — By an Act passed 28th August, 1860, trustees (under instruments of trust executed since the date of the Act) of leaseholds *renewable by contract, or custom, or usual practice* are *authorised* in the exercise of their discretion, and, if so *required* by any person beneficially interested, are *bound as a duty*, to use their best endeavours to renew; but the Act is not to apply, where by the *terms of the settlement or will*, the person in possession for his life or other limited interest is entitled to enjoyment *without any obligation to renew the lease*, or to *contribute to the expense of renewal*; and the Act where it applies enables the trustees to pay the expense out of any monies in their hands held upon similar trusts, or to raise \* the same by [\*366] mortgage (a). [This enactment has since been repealed (b), but the repeal is not to affect any right accrued or obligation incurred before the commencement of the Repealing Act, 31st December, 1882, and is not to affect

(c) 1 Eden, 453.

(d) *Milsington v. Mulgrave*, 3 Mad. 491, 5 Mad. 472; *Mortimer v. Watts*, 14 Beav. 416; and see *Verney v. Verney*, 1 Ves. 430; *Harvey v. Harvey*,

5 Beav. 134; *Luther v. Bianconi*, 10 Ir. Ch. Rep. 203.

(a) 23 & 24 Vict. c. 145, ss. 8 & 9.

[(b) 45 & 46 Vict. c. 38, s. 64.]